

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #03	CCRB Case #: 202103621	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/08/2021 2:00 AM, Tuesday, 06/08/2021 2:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/8/2022	Precinct: 10		
Date/Time CV Reported Tue, 06/08/2021 2:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/16/2021 11:12 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Wayman Manning	11520	935851	PSA 4
2. SGT Nicole Christopher	03697	952587	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keith Paul	05780	930910	PSA 4
2. POM Joel Kwok	17021	951893	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM Wayman Manning	Discourtesy: Police Officer Wayman Manning spoke discourteously to § 87(2)(b)	A . Substantiated
B . POM Wayman Manning	Force: Police Officer Wayman Manning hit § 87(2)(b) against a wall.	B . Unsubstantiated
C . POM Wayman Manning	Abuse: Police Officer Wayman Manning entered § 87(2)(b) in Manhattan.	C . Substantiated
D . SGT Nicole Christopher	Abuse: Sergeant Nicole Christopher entered § 87(2)(b) in Manhattan.	D . Substantiated

Case Summary

On June 8, 2021, § 87(2)(b) filed this complaint over the phone with IAB generating original log number § 87(2)(b).

On June 8, 2021, § 87(2)(b) was in his apartment with his girlfriend § 87(2)(b) at § 87(2)(b) in Manhattan. § 87(2)(b) called 911 and reported that § 87(2)(b) was not allowing her to leave his apartment. Police Officer Wayman Manning and Police Officer Keith Paul of Police Service Area 04 responded to the location. PO Manning used the word, “shit” while speaking to § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). PO Manning allegedly twisted § 87(2)(b) arm and pushed him up against a wall (**Allegation B: Force, unsubstantiated**). After the officers left, § 87(2)(b) called 911 to report that an officer assaulted him, and PO Manning and PO Paul responded back to the location. PO Manning entered the apartment (**Allegation C: Abuse of Authority, substantiated**). Sergeant Nicole Christopher of Public Service Area 04 responded to the location and entered § 87(2)(b) apartment (**Allegation D: Abuse of Authority, substantiated**). § 87(2)(b) was not arrested or summonsed.

The investigation received body worn camera (BWC) recordings from all the officers who responded (**01, 02, 03, 04 Board Review**). The investigation also obtained § 87(2)(b) surveillance footage from § 87(2)(b) apartment building (**05 Board Review**).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Wayman Manning spoke discourteously to

§ 87(2)(b) testified that on June 8, 2021, at approximately 12:00a.m., he was at home at § 87(2)(b) in Manhattan with his girlfriend, he introduced as, § 87(2)(b) (**06 Board Review**). The investigation found that her name is § 87(2)(b). § 87(2)(b) was throwing § 87(2)(b) belongings on the floor and acting “crazy.” § 87(2)(b) said that he called 911 and asked for police to respond to his location because his girlfriend was trashing his house, acting “crazy,” made him feel unsafe and that he wanted officers to get § 87(2)(b) out of his apartment or help to calm her down. Approximately 15 to 20 minutes later, § 87(2)(b) heard a knock at the door and § 87(2)(b) promised that she would calm down and asked to hide in the kitchen cabinets. § 87(2)(b) allowed her to do this. When § 87(2)(b) opened his door, he saw PO Manning and PO Paul. § 87(2)(b) told the officers that he was calling about his girlfriend and that she threw things all over his apartment floor. § 87(2)(b) told the officers to come into his apartment and look at the things on the floor.

§ 87(2)(b) did not allege that PO Manning spoke discourteously to him; it is being plead based on BWC footage.

PO Manning’s first BWC recording shows that at 5:30 minutes, § 87(2)(b) is standing in his open apartment doorway facing PO Manning and PO Paul (**02 Board Review**). § 87(2)(b) raises his voice and uses profanity to explain that he is tired of his neighbors calling the police on him. § 87(2)(b) says that he did not call the police. At 5:34 minutes, § 87(2)(b) steps out of his apartment and continues to loudly speak about his neighbors. At 5:41 minutes, PO Manning guides § 87(2)(b) back into his apartment and tells him that his

neighbors are going to be calling the police on him because he has a history of being “turned up,” in his apartment. At 6:21 minutes, PO Manning asks § 87(2)(b) why he is entertaining “any of this.” PO Manning further states that § 87(2)(b) should only be mad if he is “caught up in some shit,” which he is not.

NYPD EVENT § 87(2)(b) notes that § 87(2)(b) called and reported that a male § 87(2)(b) was refusing to let her leave (07 Board Review). The first radio communication corresponding to this assignment recorded the dispatcher telling officers this over the radio (08 Board Review).

PO Manning and PO Paul said that they responded to the location for a dispute (09, 10 Board Review). PO Manning said that he used the word, “shit,” because it is not a bad word (09 Board Review).

NYPD Patrol Guide Procedure 200-02 notes that officers should value human life, respect the dignity of each individual and render services with courtesy and civility (11 Board Review). Officers may use impolite words during a stressful street encounter where the officer is attempting to maintain control of a situation. NYPD Disciplinary Case no. 79627/04 (12 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *substantiated*.

Allegation (B) Force: Police Officer Wayman Manning hit § 87(2)(b) against a wall.

§ 87(2)(b) testified that after he told the officers to come into his apartment, he was then standing in front of a wall in his apartment (06 Board Review). PO Paul stood against a wall opposite of § 87(2)(b) (two feet away) and PO Manning stood in the middle of them, facing § 87(2)(b). PO Manning yelled and told § 87(2)(b) that it was not his first time arriving to that apartment for § 87(2)(b) and § 87(2)(b). PO Manning further told § 87(2)(b) something in the nature of him needing to get rid of § 87(2)(b) and asked why he was still with her and had not had her arrested. § 87(2)(b) then yelled back at PO Manning and told him that, that was not why he was there and that he was not helping. § 87(2)(b) did not hear everything that PO Manning said but believed that he could have been telling § 87(2)(b) to calm down. PO Manning then grabbed § 87(2)(b) by his left arm and twisted it so that § 87(2)(b) went from facing PO Manning to now facing the wall. § 87(2)(b) face hit the wall and while his body was turned, his right shoulder was scratched by the wall causing it to bleed. § 87(2)(b) also felt some pain in his left wrist when his arm was twisted. During this movement, PO Manning’s BWC fell. PO Manning then used what felt like the open palm of his other hand and used it to apply pressure to § 87(2)(b) upper back. § 87(2)(b) became quiet at this point. PO Manning was talking but § 87(2)(b) did not recall what he said. PO Manning held § 87(2)(b) against the wall for two to four minutes. PO Paul stood by the wall and did not say anything. § 87(2)(b) later noticed that his left wrist had a small scratch and a

speck of blood. § 87(2)(b) did not know what caused the scratch and did not know if PO Manning had something in the hand that he grabbed § 87(2)(b) with. § 87(2)(b) did not get treated for any of his injuries and stated that he did not have any photos of his injuries.

§ 87(2)(b) surveillance footage from the incident location, which comes from Elevator B, shows that PO Paul and PO Manning arrive at § 87(2)(b) floor at 18 minutes of the recording (05 Board Review). They do not get back into the elevator to leave the location until 31:30 minutes, indicating they were on the floor for approximately 13 minutes after they arrive. As the officers get on the elevator, PO Paul is using an extended open arm gesture toward the outside of the elevator door as if he were speaking to someone.

As described above, the officer's BWC video shows PO Manning speaking with § 87(2)(b) briefly before leaving without taking any enforcement action. The alleged misconduct is not captured on BWC. Neither PO Manning's BWC nor PO Paul's BWC capture them fully inside of § 87(2)(b) apartment (02, 03 Board Review). The officers' BWC recordings deactivate approximately three minutes and thirty seconds after arriving to § 87(2)(b) apartment (02, 03 Board Review), so the officers were in the vicinity of § 87(2)(b) apartment for about ten minutes after deactivating their BWCs.

PO Paul's second BWC recording, which corresponds to when the officers returning to § 87(2)(b) follow-up 911 call, starting at 6:10 minutes, captures § 87(2)(b) telling PO Manning that PO Manning "rushed" him against the wall, grabbed his arm and twisted his arm toward the back (04 Board Review). In the recording, PO Manning denies doing any of this.

During their CCRB interviews, both PO Manning and PO Paul denied that PO Manning did what was alleged and denied seeing any injuries on § 87(2)(b) (09, 10 Board Review). They both recalled that they left § 87(2)(b) apartment once they deactivated their BWCs at 1:51 a.m.

The § 87(2)(b) surveillance video was presented to PO Manning and PO Paul during their CCRB interviews. PO Manning said that he did not know what happened in the ten minutes he was on the floor after he deactivated his BWC (09 Board Review). PO Manning said that he could have been waiting for the elevator to come or for PO Paul to finish speaking to § 87(2)(b). PO Paul also said that he did not know what happened in that ten minutes and that he was probably talking to § 87(2)(b) (10 Board Review). PO Paul said that PO Manning did not go back into the apartment during the ten minutes.

§ 87(2)(b) alleged that PO Manning used force against him and both officers denied that this happened. The investigation found that PO Manning and PO Paul did not leave the location when they initially said that they did § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as *unsubstantiated*.

Allegation (C) Abuse of Authority: Police Officer Wayman Manning entered § 87(2)(b) in Manhattan.

Allegation (D) Abuse of Authority: Sergeant Nicole Christopher entered § 87(2)(b) in Manhattan.

§ 87(2)(b) testified that approximately five to ten minutes after PO Manning and PO Paul left his apartment, he called 911 (**06 Board Review**). § 87(2)(b) told the operator that he wanted to file a complaint because he was assaulted by an officer and that the officer pushed him against a wall. § 87(2)(b) asked the operator not to send the same officers, spoke to an IAB detective and ended the call. Less than ten minutes later, § 87(2)(b) heard a knock on the door and knew from the knock that it was police. He then opened his door wide and stood behind the door to let the officers in. When PO Manning and PO Paul walked inside of his apartment, he was surprised to see the same officers respond that he wanted to make a complaint about. § 87(2)(b) did not tell the officers not to come in and he did not ask them to leave. Soon after, § 87(2)(b) heard another knock on the door and saw that Sgt. Christopher and PO Kwok were there. Sgt. Christopher asked § 87(2)(b) if he was hurt, and § 87(2)(b) said that he was fine. § 87(2)(b) lied because PO Manning and PO Paul were there. All four officers then left.

Event documents related to § 87(2)(b) 911 revealed that he called to report that officers entered his apartment and roughed him up. He asked to speak with IAB (**20 Board Review**).

PO Paul's second BWC recording shows that at 2:55 minutes, PO Manning and PO Paul arrive back at § 87(2)(b) apartment (**04 Board Review**). PO Manning explains that someone called 911 for § 87(2)(b) apartment again. At 4:05 minutes, § 87(2)(b) loudly tells PO Manning that PO Manning rushed him down and that it was not fair. § 87(2)(b) is standing in his apartment doorway and PO Paul and PO Manning are standing outside of the apartment, in the hallway. At 4:16 minutes, § 87(2)(b) points to his right shoulder and tells PO Manning that he did, "That," to him. At 5:10 minutes, § 87(2)(b) points toward the inside of his kitchen and PO Manning reaches his head inside and looked in the kitchen. PO Manning remains in the doorway and § 87(2)(b) moves backward further into his apartment. § 87(2)(b) continues to loudly tell PO Manning that he assaulted him, which PO Manning denies doing. At 6:00 minutes, § 87(2)(b) tells PO Manning to get out of his apartment and says that he did not tell him to come in. PO Manning remains in § 87(2)(b) apartment and asks to see § 87(2)(b) injuries. At 6:24 minutes, § 87(2)(b) tells PO Manning to get out of his apartment twice. PO Manning remains in the apartment and continues to talk about his earlier visit to § 87(2)(b) apartment and denies assaulting him. At 7:11 minutes, PO Manning moves further into § 87(2)(b) apartment closer to him. § 87(2)(b) loudly tells PO Manning that he violated him and asks whether he has his body camera. PO Manning says that he is pulling up the BWC recording on his department phone to show § 87(2)(b). At 10:11 minutes, § 87(2)(b) says that he did not call the police.

The same recording shows that at 16:18 minutes, Sgt. Christopher arrives (**04 Board Review**). PO Paul steps back out of the apartment and Sgt. Christopher steps into the doorway of § 87(2)(b) closing apartment door. § 87(2)(b) asks why she is coming into his apartment, asks her to back up, and says that he does not need to talk to her. Sgt. Christopher takes a step backward but keeps her foot on the threshold of § 87(2)(b).

apartment, keeping the door open. At 16:35 minutes, Sgt. Christopher says that § 87(2)(b) reported that PO Manning and PO Paul did something to him and that she wants to know what happened. § 87(2)(b) reiterates that Sgt. Christopher should back out of his apartment. Sgt. Christopher replies that she was not in the apartment but that someone needed to hold the door open so that she could have a conversation with him. PO Manning holds the door open for a second and releases it. Sgt. Christopher puts her foot toward the closing door, to keep it from closing. PO Manning then holds the door open. At 17:09 minutes, § 87(2)(b) tells Sgt. Christopher that he did not call the police. At 17:35 minutes, § 87(2)(b) raises his voice and says, “Man get out of my apartment, y’all annoying me.” § 87(2)(b) continues to say that he does not want to see the NYPD anymore and that they needed to stop coming to his apartment and knocking on his door. At 17:50 minutes, PO Manning says that he knows § 87(2)(b) and walks away from the apartment door and closer to § 87(2)(b) Sgt. Christopher holds the apartment door open with her foot. PO Manning and § 87(2)(b) speak quietly until 20 minutes. At that point, PO Manning walks back toward the apartment door and both he and § 87(2)(b) are smiling. At 20:05 minutes, Sgt. Christopher asks § 87(2)(b) for his name, and he tells her. § 87(2)(b) calmly says that he did not call police and that he was not assaulted by police officers. Sgt. Christopher asks him whether there was anything on his shoulders or wrists. § 87(2)(b) slightly extends his arms outward and says no. At 21 minutes, Sgt. Christopher says that she was the supervisor coming to check what happened. § 87(2)(b) says that he is sorry and that he was just talking to the officers and that nothing happened. At 21:30 minutes, Sgt. Christopher asks for § 87(2)(b) last name, and he provides it. At 21:47 minutes, PO Manning starts walking out of § 87(2)(b) apartment and Sgt. Christopher says that she needs § 87(2)(b) pedigree information. Sgt. Christopher then steps into § 87(2)(b) apartment and asks him for his date of birth and phone number. § 87(2)(b) provides this information. All officers leave at 22:50 minutes of the recording.

PO Manning testified that he entered § 87(2)(b) apartment because § 87(2)(b) was inside of his apartment and pointed toward his arms, alleging that PO Manning injured him (09 Board Review). He stepped inside to look at the injuries. PO Manning did not leave when § 87(2)(b) asked him to because he was having a conversation with him about the incident (13 Board Review).

Sgt. Christopher testified that when she arrived, she stepped in the apartment to interview § 87(2)(b) (14 Board Review). When § 87(2)(b) asked her to leave, she kept her foot in the doorway to keep § 87(2)(b) door open because PO Manning was inside of the apartment. She needed to ensure that PO Manning was okay. After reviewing PO Paul’s BWC recording, Sgt. Christopher said that she did not remember hearing § 87(2)(b) tell them to leave his apartment during the incident.

Payton v. New York 455 U.S. 573(1980) notes that officers may not enter an individual’s home absent a warrant authorizing the entry (15 Board Review). There are a few exceptions to this rule, including voluntary consent, exigent circumstances, hot pursuit, emergency circumstances and the plain view doctrine. Consent to enter a home may be established by conduct, as well as words People v Saturnino 153 AD2d 595 (16 Board Review).

§ 87(2)(g)

[illegible]

therefore recommended that **Allegations C and D** be closed as *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- PO Manning has been a member of service for 18 years and has been a subject in two other CCRB complaints and four allegations, three of which were substantiated.
 - Case 200803011 involved substantiated allegations of a frisk, search of a person and a stop against PO Manning. The Board recommended charges and the NYPD imposed Command Discipline B. § 87(2)(g)
[REDACTED]
- PO Paul has been a member of service for 20 years and has been a subject in one other CCRB complaint and two other allegations, none of which were substantiated.
§ 87(2)(g)
[REDACTED]
- Sgt. Christopher has been a member of service for 10 years and has been a subject in one other CCRB complaint which contained no FADO allegations. § 87(2)(g)
[REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- Due to the Agency's mediation moratorium, cases were not being sent to mediation at the time that this complaint was filed.
- As of April 17, 2021, the New York City Office of the Comptroller has no record of a

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad Leader: Rolando Vasquez IM Rolando Vasquez 9/15/2022
Signature Print Title & Name Date